

BEFORE THE
FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

KAMORDEEN A. GANIU, INDIVIDUALLY	)	Docket No. 26-09
AND D/B/A GLOBAL KINGS LOGISTICS,	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	
MEDITERRANEAN SHIPPING COMPANY	)	
(USA) INC. and MSC MEDITERRANEAN	)	
SHIPPING COMPANY S.A.,	)	
	)	
Respondents.	)	

Docket No. 26-09

**Complainant's Motion for Leave to File Proposed Verified First Amended Complaint and to Add
MSC Mediterranean Shipping Company S.A. as an Additional Respondent**

**COMPLAINANT'S MOTION FOR LEAVE TO FILE PROPOSED VERIFIED FIRST
AMENDED COMPLAINT AND TO ADD MSC MEDITERRANEAN SHIPPING COMPANY
S.A. AS AN ADDITIONAL RESPONDENT**

PRELIMINARY STATEMENT

Complainant Kamordeen A. Ganiu, individually and doing business as Global Kings Logistics, moves under 46 C.F.R. §§ 502.66 and 502.71, and by analogy to Fed. R. Civ. P. 20 and 21 as applied through 46 C.F.R. § 502.12, for leave to file the attached Proposed Verified First Amended Complaint and to add MSC Mediterranean Shipping Company S.A. ("MSC S.A.") as an additional respondent, while retaining Mediterranean Shipping Company (USA) Inc. ("MSC USA") as a respondent.

This motion supersedes and withdraws the incomplete alternative amendment and discovery requests in Document 10. It is not a merits surreply to Document 11. It supplies the proposed pleading and focused evidentiary support needed for the Presiding Officer to decide leave to amend. Unlike an earlier draft that would have substituted MSC S.A. for MSC USA as sole respondent, this motion adds MSC S.A. as the disclosed carrier and principal while retaining MSC USA as the disclosed agent that issued the challenged invoice and later pursued collection in New York. This dual-respondent structure avoids any risk that a service or jurisdictional challenge to the foreign respondent could leave the proceeding without an active, responding party.

The proposed pleading challenges the August 1, 2024 invoice issued under an MSC USA letterhead expressly stating "As Agent For MSC S.A. Geneva." That invoice assessed \$84,138.00 in demurrage on three identified bills of lading and containers, plus \$11,867.73 in ocean freight. MLA-APP 37. The three bills of lading identify MSC S.A. as carrier and state that MSC USA signed as agent on the carrier's behalf. MLA-APP 40-42. The amended complaint therefore adds the disclosed carrier and principal, attributes the agent's invoicing and collection conduct to both MSC S.A. as principal and MSC USA as the agent that performed the conduct, and no longer pleads MSC USA as a regulated carrier on speculation.

RULE 71 CONFERENCE STATEMENT

On July 15, 2026, Complainant conferred by email with Wayne R. Rohde and Rachel Schwartz, counsel for MSC USA, concerning leave to amend and provided a proposed amended complaint, proposed order, and draft motion. On July 17, 2026, Mr. Rohde stated that MSC USA could not consent because an earlier proposed amended complaint did more than add MSC S.A., and because MSC USA's motion to dismiss remains pending. MSC USA therefore opposes leave to amend. This filing narrows and clarifies the proposed pleading by adding MSC S.A. as an additional respondent, retaining MSC USA, and limiting the invoice-specific claims to the documented August 1, 2024 invoice while adding a bounded unreasonable-practices count addressing the combined billing and collection conduct.

RELEVANT RECORD

1. The Secretary served the verified original complaint on June 10, 2026, and the proceeding was assigned Docket No. 26-09. Documents 1-2.
2. MSC USA moved to dismiss on July 3, 2026, principally asserting that it is an agent rather than the ocean common carrier. Documents 8-9.
3. Document 10 opposed dismissal and alternatively requested leave to amend, but did not attach a proposed amended complaint or its listed exhibits. Document 11 replied on July 13, 2026, and emphasized that the statutory claims must appear in the operative complaint.
4. The August 1, 2024 invoice identifies invoice number UAC3MEDUU0072980, three bills of lading, three containers, and \$84,138.00 in demurrage. It does not state the free-time period, charge dates, governing rule, daily rate, invoice due date, mitigation procedure, or the two required certifications. MLA-APP 37.
5. The same invoice identifies MSC USA as issuing agent for MSC S.A. MLA-APP 37. The corresponding bills of lading identify MSC S.A. as carrier and MSC USA as the signing agent. MLA-APP 40-42.
6. A separate Ocean Carrier Agreement No. 23-031AFR identifies Ganiu d/b/a Global Kings Logistics as Shipper and MSC S.A. as Carrier; it does not identify Global Kings Logistics Inc. as the contracting shipper. MLA-APP 4-5.
7. The New York complaint and judgment show that MSC USA, expressly captioned as agent for MSC S.A., pursued a \$115,537.53 account balance against Ganiu t/a Global Kings Logistics and Global Kings Logistics Inc., resulting in a November 3, 2025 default judgment of \$128,883.96.

MLA-APP 28-34. Those documents are offered for party identity, agency, collection conduct, and injury; the proposed complaint does not ask the Commission to vacate or modify the state judgment.

8. At each relevant shipment date, Ganiu individually and d/b/a Global Kings Logistics was the licensed and bonded NVOCC: FMC Organization and License No. 026671; a published tariff reported at www.dpiusa.com; and Hudson Insurance Company Bond No. 10106685 in the amount of \$75,000, effective July 24, 2020. The official FMC records identify Kamordeen Ganiu as sole proprietor and Global Kings Logistics as his d/b/a. MLA-APP 61-62.

ARGUMENT

I. Rule 66 favors a corrected and materially more definite pleading.

Rule 66 permits amendment in the Presiding Officer's discretion and authorizes an order requiring a party to state its case more fully. 46 C.F.R. § 502.66(a). The proceeding is at its outset, no answer or discovery has occurred, and the amendment addresses the precise identity and pleading objections raised by MSC USA. The proposed pleading is also substantially narrower and more definite: it identifies the invoice number and date, issuer, billed name, each bill of lading and container, each demurrage amount, each freight amount, the invoice total, and the specific statutory and regulatory fields alleged to be missing. It limits the challenged demurrage subset to \$84,138.00 rather than treating the entire \$115,537.53 mixed account balance as demurrage.

II. Adding MSC S.A. as an additional respondent, while retaining MSC USA, is the appropriate procedural vehicle.

46 C.F.R. § 502.12 permits application of the Federal Rules of Civil Procedure where the Commission's Rules of Practice and Procedure are silent, and joinder of an additional party under principles analogous to Fed. R. Civ. P. 20 is appropriate where claims against multiple respondents arise from the same transaction or occurrence and share common questions of law or fact. Here, the invoice and bills of lading supplied in the New York record identify MSC USA as agent and MSC S.A. as carrier. MLA-APP 37, 40-42. Adding MSC S.A. as an additional respondent conforms the caption to the documents and permits the Shipping Act claims to be decided against the disclosed principal, while retaining MSC USA preserves an already-served, represented, domestic respondent and avoids any gap in the proceeding if service on MSC S.A. in Geneva, Switzerland is delayed or contested.

Ganiu's NVOCC status confirms his identity and standing as shipper. An NVOCC is a shipper in its relationship with an ocean common carrier, 46 U.S.C. § 40102(17)(B), and an NVOCC that accepts responsibility for all charges applicable under a tariff or service contract is a "shipper" under § 40102(23)(E). Ganiu admits responsibility for otherwise lawful charges that were applicable under the governing tariff or service contract. He does not admit that the challenged lump-sum demurrage charges were shown to be applicable, and that limited admission does not waive the invoice protections in § 41104(d)-(f) and Part 541.

III. The amendment pleads non-futile claims under the provisions in force on August 1, 2024.

The challenged invoice was issued on August 1, 2024, after the May 28, 2024 effective date of 46 C.F.R. Part 541. MLA-APP 37. Section 41104(a)(15) prohibits a common carrier from invoicing

demurrage or detention without the information described in § 41104(d). Section 41104(f) and 46 C.F.R. § 541.5 eliminate the billed party's payment obligation when required information is omitted. Section 541.6 specifies identifying, timing, rate, dispute, and certification information. The invoice itself supports the pleaded omissions and the demurrage total of \$84,138.00.

The proposed pleading does not rely on reserved § 541.4, does not apply Part 541 to the separate August 22, 2023 invoice, and does not claim that ocean freight or the entire state-court balance is governed by the demurrage-invoice rules. Count II under § 41104(a)(14) is limited to the same specifically identified demurrage assessments and their alleged noncompliance with §§ 41104(a)(15), (d), and Part 541. Count III under § 41102(c) is limited to the alleged pattern of issuing a noncompliant invoice through a disclosed agent and thereafter pursuing collection, including against a non-contracting corporate entity, without correcting the invoice deficiencies.

IV. This motion supersedes rather than repeats the incomplete alternative request.

Rule 69(d) bars repetitious motions. This filing avoids that problem by withdrawing and superseding the incomplete alternative amendment request in Document 10, lodging the proposed pleading required for meaningful review, and relying on a focused appendix. Complainant does not seek leave to file any further reply concerning MSC USA's dismissal motion. MSC USA retains the response period provided by Rule 71(b).

V. The Secretary should serve the allowed amended complaint on both respondents.

An allowed amended complaint is ordinarily served in the same manner as the original pleading. 46 C.F.R. §§ 502.66(b), 502.113. Complainant requests service by the Secretary on MSC Mediterranean Shipping Company S.A., 12-14 Chemin Rieu, 1208 Geneva, Switzerland. A known notice email is CH001-corporatelegal.notices@msc.com. Complainant further requests that the Secretary serve MSC USA's counsel of record, Wayne R. Rohde and Rachel Schwartz of Cozen O'Connor, with the First Amended Complaint on behalf of MSC USA. Complainant does not represent that counsel accepts service for MSC S.A.

RELIEF REQUESTED

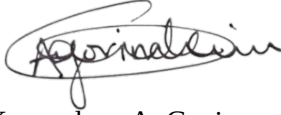
Complainant requests an order: (1) granting leave to file the attached Proposed Verified First Amended Complaint; (2) adding MSC Mediterranean Shipping Company S.A. as an additional respondent while retaining Mediterranean Shipping Company (USA) Inc. as a respondent; (3) directing service by the Secretary on both respondents; (4) requiring MSC S.A. to answer or otherwise respond within 25 days after service, unless otherwise directed; (5) requiring MSC USA to answer or otherwise respond to the First Amended Complaint within 25 days after the date of the order, unless otherwise directed; (6) denying MSC USA's pending motion to dismiss the original complaint as moot only as to the superseded original complaint, without prejudice to a procedurally proper response by MSC USA to the First Amended Complaint; and (7) granting such further procedural relief as is just.

VERIFICATION

I declare under penalty of perjury that I am the Complainant, that I have read this motion, and that the factual statements made from my personal knowledge are true and correct. Statements concerning the procedural record and public documents are true and correct based on my review of the cited materials.

Executed on July 18, 2026.

Respectfully submitted,



/s/ Kamordeen A. Ganiu

Kamordeen A. Ganiu

Complainant pro se, individually and d/b/a Global Kings Logistics

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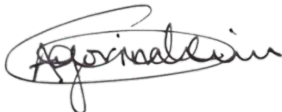
Dated: July 18, 2026

CERTIFICATE OF SERVICE

I certify that on July 18, 2026, a true and correct copy of this Motion for Leave to File Proposed Verified First Amended Complaint and to Add MSC Mediterranean Shipping Company S.A. as an Additional Respondent, the Proposed Verified First Amended Complaint, the Proposed Order, and the accompanying Public Appendix was filed by electronic mail with the Secretary of the Federal Maritime Commission at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov, and was served by electronic mail on counsel for Mediterranean Shipping Company (USA) Inc.:

Wayne R. Rohde, Cozen O'Connor - wrohde@cozen.com

Rachel Schwartz, Cozen O'Connor - rschwartz@cozen.com



/s/ Kamordeen A. Ganiu

Kamordeen A. Ganiu